

Code of Regulations for Matriculation Schools, Tamil Nadu

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State of Tamilnadu- Act

Code of Regulations for Matriculation Schools, Tamil Nadu

TAMILNADU

India

Code of Regulations for Matriculation Schools, Tamil Nadu

Rule CODE-OF-REGULATIONS-FOR-MATRICULATION-SCHOOLS-TAMIL-NADU of 1976

Published on 29 November 1976

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Code of Regulations for Matriculation Schools, Tamil Nadu

Preamble

The Matriculation Schools in Tamil Nadu form a separate category of their own with a separate identity, and cater to the special educational needs of people. All such schools in Tamil Nadu and in the Union Territory of Pondicherry were once affiliated to the University of Chennai. Later, when Madurai University was established, the Matriculation Schools in its area were automatically transferred to it for affiliation.

The Syndicate of Chennai University unanimously decided a few years ago that the Universities need no longer control Matriculation Schools and suggested that this responsibility might as well be taken off their shoulders. The Government of Tamil Nadu gave due consideration to this suggestion and decided, after careful consideration, that the Matriculation Schools might be transferred to the control of the Director of School Education and a separate Board of Matriculation Schools might be formed with the Director of School Education as its Chairman for the purpose of giving the necessary

direction and guidance to these schools. This decision was communicated in G. O. Ms. No. 2816, Education, dated the 29th November 1976. On the basis of the suggestions of the Director of School Education, Government ordered the constitution of the Board of Matriculation Schools in G. O. Ms. No. 1720, Education, dated the 25th July 1977 and also defined the terms, conditions and functions of the Board. An Inspectorate of Matriculation Schools was also formed in G. O. Ms. No. 2678, Education, dated the 29th December 1977 with an Inspector in the rank of a District Educational Officer and the necessary ministerial staff.

The Matriculation Schools are allowed to retain their original structure and hence they are permitted to levy fees and as such they are not eligible for any grant. The Matriculation Schools, in general, have the freedom to adopt their own curriculum and make innovations that suit their needs, except during the last two years when they have to adopt the common curriculum as they prepare their students for the public examinations. Along with the other schools in the State, the Matriculation Schools have also switched over to the 10+2 pattern and at the plus two or higher secondary stage, they have adopted the common curriculum and syllabus in unison with the other types, of schools recognised by the State. The Matriculation Examination which was formerly conducted by the University is now conducted at the end of Standard X by the Director of Government Examinations who will also conduct the Higher Secondary Public Examination at the end of Standard XII for all types of schools from 1979-80 onwards. English alone has been the medium of instruction in the Matriculation Schools so far and they are permitted to retain this structure also. In this context, it is worth mentioning that the Matriculation Schools of Tamil Nadu have established a name and a standard for themselves by their academic efficiency.

At the first meeting held on 18th February 1978 with the Director of School Education in the Chair, the Board of Matriculation Schools decided that a Code of Regulations might be compiled for these schools and appointed an eight-member Sub-committee for the purpose. The Committee was asked to present the draft Code for the Board's approval. The draft Code was circulated to the Heads of all Matriculation Schools for their valuable comments and suggestions. The Code as now finally adopted by the Tamil Nadu Board of Matriculation Education is, therefore, the result of combined wisdom of all the persons involved in Matriculation Education.

It is hoped that this Code which provides for orderly progress of these schools and also for normal service conditions to the staff will usher in an era of progress and more progress for these institutions.

Chapter I

Introduction

1.

(i)

The Code applied to Matriculation Schools recognised by the Department of School Education, Tamil Nadu (hereinafter called the Department).

(ii)

It shall come into [force on such date1]

[1st June, 1978 vide Procs. Re. No. 52592/E3/78 dated 22.9.80.]

as the Government may by notification appoint.

2.

Definitions.

- The term "Matriculation Schools" in this Code signifies the schools which were recognised by the Universities of Chennai and Madurai, as the case may be, and subsequently recognised by the Department. Schools which will be admitted into this category hereinafter will also be called the Matriculation Schools and be governed by the said Code.

In this Code unless the context otherwise requires, -

(i)

The term "School" signifies Matriculation Schools;

(ii)

The term "Government" signifies the Government of Tamil Nadu;

(iii)

The term ""Director" signifies the Director of School Education;

(iv)

The term "Board" signifies Board of Matriculation Schools;

(v)

The term "Inspector" signifies the Inspector of Matriculation Schools;

(vi)

"Recognised Schools" means a school recognised under this Code;

(vii)

"Principal" denotes "The head of a Matriculation School";

(viii)

"Education Agency" means any person or body of persons which has established and is administering or proposes to establish and administer such Matriculation Schools.

3.

The responsibility of maintenance and control of every recognised school shall vest in a governing body which shall be responsible for the fulfillment of all the conditions upon which recognition is granted. The governing body may entrust the management of a school to a Manager or/and a Correspondent responsible to it. But, such delegation will not divert it of ultimate responsibility to the Department and Government. The Manager or/and Correspondent duly appointed by the governing body of the Educational Agency shall be approved by the Department.

In communication with the Department, the Manager or Correspondent should invariably address the Inspector.

4.

The interpretation of any article in this Code shall rest with the Department.

5.

The appendices to the Code shall have the same effect as the articles of the Code and shall be treated as part of the code.

6.

The Matriculation Schools will be considered as a separate entity by the Department.

7.

The schools will continue to be fee-based and use English as medium of instruction.

- They will continue to be free as hitherto to innovate with regard to their curriculum except for the last one year when they prepare students for the public examination.

8.

This code shall be applicable also to Higher Secondary Section of Matriculation Schools.

Chapter II

Recognition

9.

Recognition of Matriculation Schools.

- All Schools enjoying recognition of the Chennai, Madurai Universities as on 1st June 1976 will be recognised by the Department on submission of particulars in the proforma prescribed (Annexure-I). Recognition will be accorded from Standards I to X or the Standards that actually exist.

10.

Recognition of new Matriculation Schools.

- (i) Powers to grant permission. - The competent authority to grant permission to open a private matriculation school or to upgrade an existing school will be the Director. The application will be made in proforma prescribed in Annexure II. The fees to be paid in respect of every application to open a new matriculation school shall be Rs. 100. The fee shall be credited to Government under the Head of Account prescribed by the Department.

(ii)

A list of new matriculation schools permitted to be opened by the Director shall be placed before the Board for information.

(iii)

Recognition. - The educational agency of a private matriculation school shall apply in the form prescribed in Annexure III for recognition of the school to the Director through the Inspector. The application shall be made within three months from the date of opening of the school. Where a temporary recognition is accorded, application for continuance shall be made not later than three months prior to the date of expiry of the temporary recognition.

(iv)

The following conditions shall be satisfied for the purpose of recognition:

(a)

The educational agency shall produce a licence, permitting the use of the school building as public building under the Tamil Nadu Public Buildings (Licensing) Act, 1965 (Tamil Nadu Act XIII of 1965).

(b)

Where the licence has been issued for a specific period, the fresh licence shall be produced before the expiry of the period of validity of the said licence.

(c)

The educational agency must satisfy that the school is actually needed in the locality or District and that it has sufficient buildings, class rooms, laboratories, furniture, sanitary facilities and adequate grounds for physical training activities.

(d)

The schools applying for recognition after 1st June 1978 should create an endowment of Rs. 1,00,000 out of which 50 per cent will be deposited at the time of opening and remaining amount will be deposited in five equal annual instalments. In respect of minority schools, separate reference should be made for obtaining exemption from creation of endowment and orders obtained in each individual case. In the case of old schools which have already created endowment, the endowment will be limited to Rs. 1,00,000. In the case of schools which did not create endowment status quo will be maintained. The schools will be allowed to create the endowment of Rs. 1,00,000 from the fixed deposit they have made with the University when it matures. The date of maturity should be intimated to the authority concerned.

(e)

In addition to the creation of the endowment referred to above, in the case of new schools, the Educational Agency shall also deposit in any schedule bank in the name of the school, a sum equivalent to a minimum of one month's salary of the staff employed in the school to serve as a working capital of the school which may be drawn for the disbursement of salary to the members of the staff on the due date in the event of any delay in the disbursement of salary.

(f)

The Educational Agency in the case of new schools should have fulfilled all the conditions stipulated by the competent authority at the time of according permission to open the school.

(g)

The school shall be situated in a building which is accessible to all castes and communities.

(h)

The management of a school shall not appoint any teacher whose certificate has been suspended or cancelled or who has been declared unfit to be a teacher in recognised schools or who has been convicted for offences involving moral turpitude.

(i)

It shall be open to the competent authority to reject the application of a new school for recognition if he considers that any one of the conditions has not been satisfied.

(j)

The Inspector may visit a recognised school during school hours.

11.

Withdrawal of recognition.

(a)

The competent authority for withdrawing recognition of a Matriculation School will be the Director.

(b)

The recognition shall be withdrawn permanently or for any specified period by the Director after a proper enquiry if the Educational Agency or its authorised representative violates any one of the conditions stipulated for recognition.

Chapter III

Admission and Withdrawals

12.

Admission.

- (i) The Principal will have the right of admission and will also be responsible for admissions according to the rules.

(ii)

A pupil with a valid Transfer Certificate shall be admitted to the Standard to which the Transfer Certificate declare

him/her fit. The pupil should not be placed in a class higher or lower.

(iii)

Age of pupils. - Pupils admitted into Standard I should have completed five years on 31st July of that year. 31st July will be the reference date. No exemption from the operation of age rules will be applied for or sanctioned for pupils studying in Standard I which defeats the very purpose of having a minimum age limit.

(iv)

Age rules need not be applied in other standards for pupils who are coming for admission with Transfer Certificates from recognised schools.

(v)

Age rules should be applied for pupils coming from unrecognised private schools. The Inspector is authorised to give exemption upto a period of six months in deserving cases on the recommendations of Principals in the case of admission in Standard II and above.

(vi)

Application for admission shall be made in the form prescribed in Annexure IV. The Principal may, at his discretion, demand valid birth certificate, at the time of admission. Baptism Certificate may be accepted as equal to birth certificate. The date of birth once entered will not be altered except when an obviously absurd entry has to be corrected or when a Civil Court directs correction in any individual case. In these cases, the corrections should be made only under the Director's orders and should be attested by the Inspector.

(vii)

No pupil who has not attended a recognised school in the first term shall be admitted in the second term to any recognised school without the prior permission of the Inspector. The first term will constitute the months from June to December and the second term will constitute the months from January to April.

(viii)

Transfer certificate received from other States for admission into Standard IX and X will be sent to the Inspector for evaluation.

(ix)

Admission of pupils coming from unrecognised schools can be made ordinarily till 31st July up to Standard VI. The pupils should be judged after testing as fit for the class and the pupils should satisfy the age rules.

(x)

Transfer certificates received from other States should bear the counter signature of the Inspecting Officers of the concerned State.

13.

Withdrawal.

- Transfer certificates may be, issued only on application by parents or guardians in writing. Transfer certificates should not be issued in the case of pupils debarred till the period is over. A form for transfer certificate is given in Annexure V.

Chapter IV

School Regulations

14.

(i) School Hours. - The ordinary school day shall consist of not less than five hours in Standards VI to X and not less than four hours in Standards I to V. The holding of school for more than three consecutive hours is prohibited. In the lower classes, if the pupils are young at least one break of fifteen minutes shall be allowed where the course of continuous instructions extends to three hours.

(ii)

Working days. - The minimum number of working days in a year should be 200 including examination days. At the beginning of an academic year, the schools will draw up a list of working days and holidays and send the same to the Inspector.

(iii)

Strength. - Strength will be regulated as follows: -

The staff will, ordinarily, be regarded as insufficient if any teacher is required to teach more than 50 pupils or more than one class at one and the same time.

Admission in excess of 50 pupils in a standard or a section of a standard should not be made without the prior

permission of the Inspector, provided there is sufficient accommodation. There should not be more than four sections in a class. Each section should have a separate class room. To open a fifth section for a standard, permission should be obtained from the Inspector. Information shall be given to the Inspector when a section is closed down.

15.

Annual promotion.

- Promotion will be made annually by the Principal. The Principal will be ultimately responsible for promotion. There will be no double promotion in any one year.

The Principal will draw the principles of promotions every year in consultation with the staff council. Principles may differ for each standard and section. But once principles are framed, there should be no deviation. Standard-wise principles of promotion and detention lists should be recorded in a register and signed by the principal and teachers concerned within a week after the completion of promotions and before publishing the results.

Chapter V

Financial Side of Matriculation Schools

16.

- (i) The Matriculation Schools will continue to enjoy the financial autonomy hitherto enjoyed by them. They will ensure that the fees they are levying are reasonable and are commensurate with the expenditure involved and amenities provided. After the financial year is over, the accounts are to be audited by a Chartered Accountant and a certificate signed by the auditor to the effect that the accounts have been audited should be sent to the Inspector within a month after the completion of audit.

(ii)

The teachers and non-teaching staff in Matriculation Schools should be paid at least as per the Government scales of pay revised from time to time.

Chapter VI

Staff

17.

Qualifications of the staff.

- The staff will be qualified in accordance with the prescription made in Annexure VI. But no one who is on the role on 1st June 1978, need be retrenched because of this rule. They should get themselves qualified within a period of five years from 1st June 1978. This does not apply to teachers who have already put in 15 years of service in any recognised school and those who have completed 45 years of age. They should get exemption from the Director of prescribed qualifications to continue further.

18.

(i)

The members of the staff including the Principal retire at the age of 60 (sixty) as permitted by the University. If they have to retire in the middle of the academic year, they will continue to be re-employed till the closure of the academic year, i.e., 31st May. The Director is empowered to give extension for a period of two years only. One year at a time in respect of Principals of Matriculation Schools who attain the age of 60 in special cases provided that the services, conduct and character of the Principal are extraordinarily satisfactory and the management also recommends and he/she is physically fit to continue in service for the period to be extended.

(ii)

The staff in Matriculation Schools will be paid at the rate of Government scales of pay and they are eligible for selection grade after 10 years of service as in other recognised schools. The teachers and other persons employed in Matriculation Schools shall be governed by the code of conduct as specified in Annexure VII.

19.

In a permanent vacancy, member of teaching and non-teaching staff shall be appointed only on probation for a period of 12 months from the date of his/her appointment. But, the school authority may, before the expiry of that period extend it to a further period not exceeding 12 months for reasons to be given in writing to the teacher and acknowledged by the teacher.

20.

Terminations.

- (A) In respect of teachers or a member of non-teaching staff appointed temporarily or to act on probation, the

management shall have power to terminate the services of such teacher or a member of non-teaching staff without notice for any or all of the following reasons: -

(i)

Wilful neglect of duty, serious misconduct, gross insubordination, mental unfitness, suspension or cancellation of teachers certificates by the Director under the Code of Regulations for Matriculation Schools.

(ii)

With notice of two months or two months salary in lieu thereof for the following reasons: -

(a)

Incompetence;

(b)

Retrenchment;

(c)

Physical unfitness or any other good cause.

(B)

In respect of teachers or a member of non-teaching staff appointed permanently, the management shall have the power to terminate the services of such teacher or a member of non-teaching staff without notice for any or all the following reasons: -

(a)

Wilful neglect of duty, serious misconduct, gross insubordination, mental unfitness, suspension or cancellation of teachers' certificates by the Director under the Code of Regulations for Matriculation Schools.

(b)

With three months notice or three months salary in lieu thereof for the following reasons: -

(a)

Incompetence; (b) Retrenchment; (c) Physical unfitness or any other good cause.

Subject to the proviso given below:

(i)

The school authority shall not terminate the services of the said teacher or a member of non-teaching staff whether summarily or otherwise without informing him in writing of the grounds on which they intend to take action and giving him/her what in their view is a reasonable opportunity for stating his/her case in writing and before coming to a final decision shall duly consider his/her statement and if he/she so desires give him/her a personal hearing or conduct an enquiry.

(ii)

After the conduct of the personal hearing or enquiry by the management, a notice will be issued to him/her setting out the proposed punishment and he/she shall be given a reasonable time to defend himself/herself against the proposed punishment.

(iii)

It shall be lawful for the school authority at any time if satisfied on medical evidence that the said teacher or a member of non-teaching staff is unfit and is likely for a considerable period to continue unfit by reason of ill-health, for the discharge of his/her duties as such teachers or a member of non-teaching staff to terminate his/her services on paying him/her three months salary less any amount which may have been paid to him/her as leave allowance, after the date of his/her last appearance in the school, for the regular discharge of his/her duties as such teacher or a member of non-teaching staff subject to minimum of one month's full salary.

(iv)

That the said teacher or a member of non-teaching staff shall not during the period of this agreement when he/she has not been given notice for termination of his/her services by the school authority, or has not given notice to the school authority for such termination of his/her-services apply for an appointment under any other authority except through the school authority and the penalty for any breach of this may, at the discretions of the school authority, be dismissed from service. The school authority shall not refuse to forward such application but may declined to relieve him when the need arises unless he/she gives due notice or pays an amount equal to the salary for three months.

(v)

That the said teacher or a member of non-teaching staff when he/she becomes permanent member of the staff of the

said school shall be entitled to have his/her services terminated either by giving to the school authority three months notice thereof in writing or by paying that authority three months salary in lieu of such notice.

21.

Minor punishments.

- The management may impose any of the following minor punishment on the said teacher or a member of non-teaching staff for any irregularity or breach of the code of conduct on the part of the said teacher or a member of non-teaching staff.

(i)

Censure; (ii) withholding of increment with or without cumulative effect; (iii) Recovery from pay to the extent necessary of the monetary value equivalent to the amount of increments ordered to be withheld where such an order cannot be given effect to:

Provided that the management follows all the procedure as laid down for awarding major punishment and arrives at the decision of awarding a punishment.

22.

Agreement.

- The management shall enter into an agreement with the teacher or a member of non-teaching staff in forms given in Annexure VIII if the appointment is for a period exceeding six months.

Three copies of the agreement shall be executed. One copy shall be furnished to the teacher or a member of non-teaching staff concerned, the other copy shall be retained by the management and the third copy shall be forwarded to the Inspector.

22A.

- In all cases of punishment except in cases of censure, an appeal lies with the Director in respect of the Principal/Headmaster/Headmistress, B.T. Assistants and other teachers drawing B.T. scale of pay and for all other categories of staff including non-teaching staff, the Inspector is the appellate authority. An appeal shall lie with the Government against the orders passed by the Director and similarly an appeal shall lie with the Director against the orders passed by the Inspector. If the appeal is made after two months from the receipt of orders of punishment, it will be considered as belated.

Chapter VII

Leave Rules

23.

The leave rules approved by the Government of Tamil Nadu for teaching and non-teaching staff in other recognized schools are applicable to Matriculation Schools also.

Chapter VIII

Registers

24.

The following registers will be maintained by Matriculation School. -

1. Pupils' attendance Register.
2. Staff Attendance Register - Teaching.
3. Staff Attendance Register - Non-teaching.
4. Admission and Withdrawal Registers.
5. Stock Register for Furniture.
6. Stock Register for Library Books.
7. Casual Leave Register.
8. Leave other than Causal Leave Register.
9. Scale Register: -
10. Acquittance Register
11. Scholarship Register
12. Concession Register
13. Consolidated Marks Register
14. Promotion Register
15. Visitors' Book

16. Log Book

The school will maintain counter-foil for all transfer certificates issued. The Registers will be maintained properly and the returns required by the Department will be furnished promptly by the management. This will be one of the conditions of recognition.

A Service Register shall be maintained for every teacher or a member of non-teaching staff showing, among others, the date of appointment, the scale of pay in which he/she was appointed, the minimum increment given, from time to time, the leave to his/her credit and the leave granted and other relevant entries like awards and punishments.

The procedure adopted in respect of secondary schools shall also be adopted in Matriculation Schools regarding the opening and maintenance of Teachers' Service Registers.

Chapter IX

Building

25.

Use of school building.

- The premises of an educational institution or any subsidiary building apportioning to it or a play ground or vacant site belonging to a Matriculation School, whether adjacent or remote from it, shall ordinarily be used only for the purposes of functions conducted by such institution. In no case, shall the use of such buildings, play ground or vacant site be given for political meetings. The schools will make available their halls for the conduct of examinations, if required.

Chapter X

Closure of Schools

26.

An Educational Agency shall close a school or a standard of a course of instruction therein, only after giving notice, in writing one year prior to such closure to the competent authority who had given permission to open school, the standard or the course of instruction. Such notice shall set out the alternate arrangements proposed to be made for the continuance of instruction to the pupils of the school or standard or course of instruction. Such closure, however, shall be permitted only with effect from the end of the school year. The competent authority, while giving such permission shall satisfy himself about the adequacy of the alternate arrangements proposed to be made and that any property endowed to the school proposed to be closed shall continue to be used for educational purposes in accordance with the objects of the Trust or Endowment.

Chapter XI

Disciplinary Regulations For Students

27.

(i)

Gross cases of immorality or insubordination shall be punished by expulsion after charges are framed and a reasonable opportunity to defend himself is given and a suitable enquiry is conducted by the Principal. A report should be sent of all such cases to the Inspector within seven days.

(ii)

If admission has been secured for a pupil by means of false certificate or false representation of any kind, he shall be summarily dismissed by the Principal with forfeiture of whatever fees he/she may have paid.

(iii)

The Principal may frame and issue, from time to time, disciplinary rules of a permanent or temporary character regulating the conduct within the school for the students of Matriculation Schools.

(iv)

The Principal may frame and issue, from time to time, disciplinary rules of a permanent or temporary character regulating the conduct outside the school, so far as such rules seem necessary to maintain the credit usefulness and reputation of the school.

(v)

The Principal shall have full power to inflict the following punishments in the interest of the students: -

(a)

Fines;

(b)

Loss of Attendance;

(c)
Suspension; and

(d)
Expulsion.

28.

(i)
If Principal/Headmaster of a Matriculation School is found to be negligent in the discharge of his/her duties or is found to have committed any irregularity, the Educational Agency will be the authority to take disciplinary action. The Director shall act when the Educational Agency fails to act.

(ii)
The nature of enquiry to be conducted will be the same as that referred to in Rule 20.

(iii)
An appeal shall lie with the Government in the case of orders issued by the Director.

29.
If the Correspondent of a Matriculation School is found guilty of malpractice and corruption, the Educational Agency shall conduct an enquiry and take suitable action against him/her failing which the Director will take action after conducting a thorough and proper enquiry. An appeal shall lie with the Government against the orders of the Director in this regard.

Annexure I

Proforma - Particulars Required For Recognition of Matriculation Schools

1. Name of the school with full address.

2. (a) Date in which the school is recognised by the University of Chennai/Madurai.

(b)
Reference number and date of orders of the University according to recognition to the school.

3. Name of the Educational Agency managing the school.

4. Name of the Manager (If there is a post as such).

5. Name of the authorised Correspondent.

6. Name of the Headmaster/Head-mistress of the School.

7. (a) Whether recognition is sought from L.K.G. to Std. X or Std. I to X ?

(b)
If recognition is not sought for LKG and UKG, the same may be indicated.

(c)
Standard-wise and section-wise strength (to be given in a separate annexure)

8. Particulars of teaching and non-teaching staff employed in the school (to be given in a separate annexure)

Sl. No.

Name

Date of birth

Academic qualifications with subjects studied

in Degree

Professional qualifications with subjects

Pay

1

2

3

4

5

6

Total service in other recognised schools and

Matriculation Schools

Total Service in present school

Total Service Column

7(a)

7(b)

7(a)+7(b)/7(c)

9. (a) Details of accommodation and sanitation available should be enclosed preferably with a sketch.

(b)

The portions of the building occupied by the unrecognised sections may be shown separately in the sketch.

(c)

Whether water facility is available,

(d)

Whether owned or rented or rent-free.

10. (a) Details of furniture, appliances and apparatus available.

(b)

Whether separate laboratory facilities are available for Physics, Chemistry and Biology.

11. (a) Whether a library is provided,

(b)

Number of volumes available.

12. Language taught under second language.

13. Playground -

(a)

Area available in acres;

(b)

Owned or leased.

14. (a) Whether the school has created the endowment as required by the University.

(b)

If so, the amount of endowment created.

15. Fees levied in each standard.

16. Whether the school is holding a licence permitting the use of the school building under the Tamil Nadu Public Building (Licensing) Act, 1965 (Tamil Nadu Act 13 of 1965).

17. Whether the school has received a sanitary certificate from the competent authority (in Chennai city-Director of Public Health)

2. An Assistant Director of Public Health

3. Health Officer of the Corporation

In Muffasul Municipalities having Health Officer, Municipal Health Officer. - In Municipalities where there are no Health Officer and in rural areas of all Districts, District Health Officer or if sanitary reasons are given Health Inspector.

(Signature of Correspondent)

Annexure II

Application For the Opening of A Matriculation School

1. (a) Name of place where the new school is proposed to be opened,

(b)

Name of the proposed school.

2. Revenue District, Taluk and Post Office.

3. (i) Details of the management which proposed to open the Matriculation School.

(ii)

Is the management a registered body ?

If so, the details should be furnished.

4. Standards proposed to be opened. (New or upgrading, details may be furnished)

5. Population of the villages within eight kilometre radius.

6. Population of children in the school age group 11-17, 14-17 in the villages within eight kilometres radius (Particulars in respect of boys and girls should be furnished separately).

7. Number of primary and Middle Schools functioning within the eight kilometre radius with their standard-wise strength.

8. Details of Matriculation Schools and High Schools, within the distance of eight kilometres together with their

standard-wise strength.

9. Whether there is any natural barrier between proposed school and the existing schools.

10. (a) Name of the Pre-primary, Primary, Middle High Schools in the locality.

(b)

Distance of such schools from the proposed school.

(c)

Particulars of strength attendance (roll and attendance) of such schools (Standard-wise particulars should be furnished).

11. Number of pupils expected to join in each of the standards of the proposed school.

12. Medium of instruction.

13. Whether the fees of Rs. 100 remitted. If so, the details of remittance made (Head of account to which the amount is to be remitted). 0202-Edn. Sports & Culture 01-General Edn. 202-Sec. Edn. (5) other receipts (0202-01-202-AB-0505)

14. Whether the Educational Agency is prepared to create -

(a)

Endowment as required in Rule 10(iv)(d);

(b)

Cash reserve as required in Rule 10(iv)(e).

15. Details of the accommodation, playground area, furniture, etc., proposed to be provided for the school.

Place:

Signature of the person duly authorised by the Management.

Date:

Annexure III

Application For Recognition of Schools

1. Name of the school with full address

2. Date of opening of the school (Reference number and date of orders of the competent authority permitting the opening of the school to be furnished). In case of minority schools and other schools existing on the date of commencement of the code, the reference number and the date of submission of the statement should be indicated.

3. Name of the management managing the school.

4. (i) Name of the Manager.

(ii)

Name of the Principal/H.M.

(iii)

Name of the Correspondent.

5. Standards for which recognition is sought for

6. (a) Standard wise strength and attendance

(b)

Whether all the standards are having economic strength.

(c)

List of teaching and non-teaching staff employed in the school with details of qualifications, designation, etc., to be furnished.

(d)

Whether the teaching and non-teaching staff are qualified.

7. (a) Details of accommodation and sanitation available should be enclosed.

(b)

Whether owned or rented or rent-free

(c)

Whether adequate and suitable

8. (a) Details of furniture, appliances and apparatus

(b)

Whether adequate and suitable

9. (a) Whether a library is provided

(b)

Whether it is adequate.

10. Whether register are maintained in the prescribed forms

11. Whether arrangements have been made for the compulsory medical inspection of the pupils.

12. Playgrounds

(i)

Area available (in acres)

(ii)

Owned or leased

(iii)

Whether adequate and fit for use

13. (i) Whether the school has created -

(a)

Endowment as required in Rule 10(iv)(d)

(b)

Cash reserve as required in Rule 10(iv)(e)

(ii)

Property full details regarding extent of the property value of the property, etc., should be furnished.

(iii)

If the endowment is in the shape of cash, full details of the amount and mode of investment should be furnished.

(iv)

Whether the endowment is unencumbered and whether it stands absolutely in the name of the school without any reversionary rights.

(v)

Net annual income derived from the endowment.

(vi)

Whether the original deed of property has been verified by the Government Pleader and certified that the deed conveys absolute rights to the school without any reversionary rights to the donor that it is unencumbered.

(vii)

Whether the original cash investment certificates have been verified by the Inspector.

(viii)

Whether attested copy of the Government Pleader's opinion, income certificate, encumbrance certificate in respect of the property endowed to the school are enclosed.

(ix)

Details of balance endowment to Be created, if any.

14. Whether the management is agreeable to abide by the conditions for the recognition in rule 10 and the provisions of the code of the regulations for Matriculations Schools.

Declaration

On behalf of the management of the school, I hereby declare that all the conditions specified in the Rules and the departmental orders have been fulfilled. I also declare that we shall abide by the conditions for recognition in Rule 10 and the provisions of the code of regulations for Matriculation Schools.

Place:

Signature of the person duly authorised by the Management.

Date:

Annexure IV

Application For Admission Into Matriculation School

1. Name of pupil

2. Date of birth

3. Nationality and State to which the pupil belongs

4. Religion (This information is intended only for statistical purposes)

5. Does the candidate belong to Scheduled Castes or Scheduled Tribes or other socially and educationally backward classes specified in the Tamil Nadu Educational Rules or is he a convert from the Scheduled Castes or the Scheduled

Tribe ? If so, please specify.

6. Whether living with parent or guardian and local residence if not living with parent or guardian.

7. (a) Name of parent

(b)

Occupation

(c)

Full Address

8. (a) Name of guardian

(b)

Occupation

(c)

Full address

9. Class last studied, name of school last attended and whether qualified for promotion.

10. Whether Transfer Certificate or Elementary School Leaving Certificate and (or) Record Sheet is attached.

11. Class into which admission is sought.

12. Mother tongue of the pupil

13. Languages proposed to be taken under second language.

14. Protection from small-pox whether vaccinated or small-pox marked.

15. Previous school history of pupil

I declare that the statement above is correct and that the pupil has not attended any other school besides those mentioned above.

I declare that I will not ask for a change in date of birth in future.

Station:

Signature of Parent/Guardian.

Date:

Order of the Headmaster/Headmistress (regarding admission with signature and date).

Annexure V

Form of Transfer Certificate

Number:

1. Name of the school which the pupil is leaving

2. Name of the pupil

3. (a) Name of the father

(b)

Nationality, Religion and Caste

(c)

Community-State whether the pupil belongs to -

(i)

Adi-Dravidar (SC or ST)

(ii)

Backward Class

(iii)

Most Backward Class

(iv)

Converts to Christianity from SC or ST

(v)

Denotified Communities

4. Date of Birth in words as entered in Admission Register.

5. Standard in which the pupil was reading at the time of leaving (in words).

6. Date of admission or promotion to that standard. The year to be entered in words.

7. Whether qualified for promotion to a higher standard under the Code of Regulations of Matriculation Schools.

8. Whether the pupil has paid all the fees due to the school.

9. Date on which the pupil actually left the school.
10. Date on which application for transfer certificate was made on behalf of the pupil by his guardian/pa rent.
11. Date of Transfer Certificate
12. Signature of the Principal.

Annexure VI

I. Qualifications for appointment as teachers in matriculation schools

Name of the Post

Qualification required

1. Principal

(1) B. A., or B.Sc.,
or its equivalent and B.Ed. or B.T or L.T. and Trained Teachers
Certificate to Collegiate Grade.

(2) Should have

worked as teacher in recognised schools for a period of not less
than five years after obtaining B.T. or its equivalent degree
and subject to the approval of the Board.

(3) Candidates selected by the Educational
Agency as Principal of the Institution though not having five
years experience may be approved if they possess the required
educational and professional qualifications.

2. B. T. Assistants

B. A. or B.Sc., or
its equivalent and B.T. or B.Ed or
L.T. and Trained
Teachers' Certificate to
Collegiate Grade.

3. Secondary Grade Teacher

(1) S.S.L.C

(2) T.S.L.C. or Secondary or its equivalent
provided teachers who have passed the Nursery, Montessori and
Kindergarten School Leaving Certificate Examination of Secondary
Grade shall be employed to handle standards I and II only.

4. Elementary Grade Teacher

E.S.L.C. or its equivalent and trained teachers'
certificate elementary grade or its equivalent.

5. Tamil Pandits

(1) M.A. (Tamil) or
B.A. (Tamil) or M.O.L. (Tamil) or B.O.L. (Tamil) and B.Ed., or
B.T. or L.T. or Secondary Grade Training or

(2) S. S. L. C.

completed and Oriental Title of Chennai, Madurai or Annamalai
University and Pandits training certificate or secondary grade
training certificates.

(3) Provided that persons who have passed

Pulavar Panditham Examinations of the Madurai Tamil Sangam to be
held upto April 1977 only, with pandits training or secondary
grade, training are also eligible for appointment as Tamil
Pandits in schools. Provided further that person appointed as
Tamil Pandit in any school prior to the 1st April 1976, shall be
eligible for appointment in any other school even after 1st
April 1976.

6. Pandits of other languages (Languages other than Tamil)

1. Degree of any

University in the State or its equivalent with oriental language as special study; and Degree or Diploma in teaching of any University in the State or its equivalent; or

2. S.S.L.C.

completed and Titles or certificates of proficiency in Oriental learning of an University in the State or its equivalent; and

Pandits training or secondary grade training.

7. Physical Director

A Degree in Physical Education of any University in the State or its equivalent.

8. Physical Education Teacher(a) Grade I

A pass in first

year B.A., or its equivalent Degree; or

2. Intermediate; or

3. T.S.L.C. or

secondary grade; or

4. Senior Basic Grade

Government Teachers' Certificate of Higher

Grade in Physical Education.

(b) Grade II

S.S.L.C. Eligible and

Government Teachers'

Certificate in Physical Education.

Explanation. - In high schools, the first

physical education teacher should be a holder of Higher Grade

Certificate. If a Higher Grade Certificate holder is not

available a person with Government Teachers' Certificate in

Physical Education may be appointed on a regular basis. However,

if any additional Physical Education Teacher is to be appointed

he shall be a holder of Higher Grade Certificate in Physical

Education.

9. Wood Work Instructor

1. S. S. L. C.

Completed; and

2. Industrial School

Certificate; or Certificate course in elementary wood working

(old regulations) issued by the College of Arts and Crafts,

Chennai; or Diploma course in wood work issued by College of

Arts and Crafts (New Regulations) Chennai; and

3. Technical

Teachers' Certificate; or Craft Instructors' Course Certificate

of Teachers' College, Saidapet; and

4. National Trade

Certificate in the trade of carpentry. One year course (with)

One year paid (Untrained) teaching experience or one year (Paid)

work experience in a standard wood work factory or institution;

and

5. National apprentice certificate issued by

the National Council for Training in Vocational Trades (wood work)

10. Spinning and Weaving Instructor

1. S.S.L.C.

completed; and

2. Artisan course or

Instructors' Course Certificate of the Government Textile

Institute, Chennai; or Government Technical

Examination Certificate (Lower Grade); or Bunayee or Khadi

Pravisaka course (one year) of the All India Spinners

Association, Tiruppur; or Three years course certificate in

Handloom and Powerloom weaving issued by the S.M.R.V. Technical Institute

Nagercoil awarded prior to 1961; or Twelve months'

Craftsman Certificate in Handloom Weaving of S.M.R.V. Technical

Institute, Nagercoil; or National Trade

Certificate awarded by the National Council for Training in

Vocational Trades, Government of India, the Director General of

Resettlement and Employment in Hand weaving Trade; or Diploma in Handloom

Technology awarded by the Indian Institute of Handloom

Technology, All India Handloom Board, Salem; and 3. Technical Teachers' Certificate; or Craft

instructors' course certificate of Teachers College, Saidapet.

11. Instructor in Gardening and Agriculture

1. S.S.L.C.

completed or its equivalent; and Government Technical

Examination Certificate (Lower Grade); and

Technical Teachers'

Certificate; or

2. Completed Secondary School Leaving

Certificate with thirty five per cent in Agriculture, (Theory

and Practical separately) under the diversified course; and

Technical Teachers' Certificate

12. Instructor in Home craft

1. S.S.L.C.

completed; and

2. Government

Technical Examination (Higher Grade in Needle work and Dress

Making and Higher Grade in Embroidery) Industrial School

Certificate; or

National Trade

Certificate awarded by the National Council for Training in

Vocational Trades Government of India or the Diploma awarded by

the Director-General of Resettlement and Employment, New Delhi

in Embroidery and Needle work; or

Diploma in costume

designing and in dress making issued by the State Board of

Technical Education and Training, Chennai; and

3. Technical Teachers' Certificate

13. Instructor in Music

1. Degree with Music

under Part III; or Completed S.S.L.C.; and Sangeetha Bushana of

Annamalai University; or Sangeetha Vidwan title in Music awarded

by the Director of Government Examinations, Chennai; or Sangeetha Sironmani of the Chennai University; or Diploma in Music of the Chennai University or Madurai University; and Technical Teachers' Certificate; or

2. S.S.L.C.

Completed; and

Government Technical

Examination Certificate (Higher Grade) in Music; and Technical Teachers' Certificate; or

3. Completed

S.S.L.C. with forty per cent in Music (Theory and practical separately under the Diversified Course); and Technical Teachers' Certificate; or

Diploma in Music

Teaching awarded by the Director of Examinations; or

4. Teachers' certificate in Indian Music issued by the Directors of Government Examinations

14. Drawing Master

1. (a) Degree with

Drawing and Painting under Part III of an University in the State or its equivalent; or

Diploma in Painting

or Diploma in Drawing of the Annamalai University; or

(b) S.S.L.C.

completed; and

Government Technical

Examinations (Higher Grade) in Free-Hand out line and Model

Drawing; or

Government Diploma

in Drawing; and

2. Technical Teachers' Certificate

15. Metal Work Instructor

Electric wiring

Instructor, Book Binding Instructor, Tailoring Instructor,

Leather Work Instructor, Clay Modelling and Paper Making Coir

Instructor. Basketing and Ratan Work Instructor.

1. S.S.L.C.

completed; and

2. Industrial School

Certificate; or Government Technical Examination of Lower Grade in the subject; or Certificate of the

Government of India, Director of Resettlement and Employment (Ministry of Labour)

Explanation. - The Industrial School

Certificate should ordinarily be of not less than two years duration and for the particular subject alone and not for a number of subjects.

II. Qualifications for the non-teaching staff in matriculation schools

1. Librarian-A Graduate with Diploma or Certificate in Library Science.

2. Clerks-S.S.L.C. with Diploma in Secretarial Course.

3. Typists and Stenographers-S.S.L.C. and professional qualifications.

4. Record Clerk, Laboratory, Library Attender-S.S.L.C passed.
5. Peons and Sport Markers-A pass in Standard VIII
6. Watchman, Waterman, Ayahs, Gardener, Sweeper and Scavenger-To read and write Tamil.

Appendix VII

Code of Conduct For Teachers and Other Persons Employed In A Matriculation School

1. Every teacher or other person employed in a Matriculation School shall discharge his duties efficiently and diligently and shall conform to the rules and regulations.
2. No teacher or other persons employed in a Matriculation School shall absent himself from his duties without prior permission. In cases of sickness or absence on medical grounds, a medical certificate to the satisfaction of the school authorities shall be produced within a week.
3. No teacher or other persons employed in Matriculation School shall engage directly or indirectly in any trade or, business. In the case of remunerative work like private tuitions, specific written sanction of the school authorities shall be obtained.
4. (a) No teacher or other persons employed in a Matriculation School shall send any application for employment under any other agency except through the management of the school.

(b)

The management shall not withhold any such application. It shall, however, be open to the management to prescribe reasonable conditions for relieving him.

5. Prior permission of the management shall be obtained in a case where any teacher or other person employed in a Matriculation School seeks to accept honorary work without detriment to his duties as a teacher.
6. A teacher or other person employed in a Matriculation School who becomes involved in a criminal proceedings shall inform the management of such proceedings.
7. No teacher or other person employed in a Matriculation School shall engage himself in any political activity. He shall not be associated with any political party or any organisation which takes part in politics or shall subscribe to or assist in any other manner in any political movement.
8. No teacher or other person employed in a Matriculation School shall contest or participate in or canvass for any elections. Such restriction will not, however, apply to the teachers in respect of elections to the teachers' constituencies.
9. No teacher or other person employed in a Matriculation School shall bring or attempt to bring any political or outside pressure on his superior authority in respect of his individual service interest.
10. No teacher or other person employed in a Matriculation School shall engage himself or participate in any demonstration or activity which is prejudicial to the sovereignty and integrity of India, the security of the State, the friendly relation with foreign States, public, order, decency or morality or which involves contempt of Court, defamation or incitement to an offence.
11. No teacher, or other person employed in a Matriculation School shall indulge in anti-Government activities. Adoption of legitimate methods of ventilating grievances, however, shall not be considered as anti-Government.

Annexure VIII

Form of Agreement

Agreement made this day of..... Two thousand and.....between (Management) of the one part and.....(Teacher) of the other part;

Whereas the management have agreed to engage the said teacher to serve in the name of the school at..... (Place) in the capacity of a teacher and on the salary herein after mentioned: -

Now these present witness and the parties hereto do hereby agree as follows:

1. That the management shall employ the said teacher and the said teacher shall serve the management as a teacher at (Place) from the date of his taking charge of such appointment until such employment shall be determined as herein after provided.

2. That the said teacher shall be on probation for a period of [twelve months]

[Vide I.M.S. commn. R.C. 930/B/79, dated the 6th May 1980.]

from the date of taking charge of his appointment, but the management may, before the expiry of that period, extend it to further period not exceeding twelve months for reasons to be recorded in writing.

3. That the said teacher will employ himself honestly, efficiently and diligently, under the orders and instruction of the Headmaster or Correspondent or other officers of the said school under whom he shall, from time to time, be placed as

teacher in the said school in which capacity he will discharge all such duties appertaining to that office and do all things which may be required of him or which are necessary to be done in his capacity as aforesaid and will make himself in other respects generally useful as may be required of him.

4. That the said teacher will not normally or on any pretence absent himself from his duties without first having obtained the permission of his superior officers authorised in his behalf or in case of sickness or inevitable accident without forwarding where necessary a medical certificate satisfactory to the management as may be required by the leave rules for the time being in force in the said school.

5. That the said teacher will devote his whole time to the duties of the said employment and will not on his own account or otherwise either directly or indirectly carry on or be concerned, in any trade, business or canvassing work, private tuition or the like of a remunerative and without the specific written sanction of the management.

6. That the said teacher shall conform to all the rules and regulations for the time being in force in the said school and obey all lawful orders and directions as he shall, from time to time, receive from any authorised officer of the said school.

7. That the management shall have the power to terminate the services of the said teacher when he becomes a permanent member of the staff of the school.

(a)

Without notice for any or all of the following reasons: -

Wilful neglect of duty, serious misconduct, gross insubordination, mental unfitness, suspension or cancellation of teachers' certificate by the Director of School Education under the Code of Regulations of Matriculation Schools.

(b)

With three months notice or three months' salary in lieu thereof for the following reasons -

Incompetence, retrenchment, physical unfitness or any other good cause:

Provided that -

(1)

(i)

The Management shall not terminate the services of the said teacher whether summarily or otherwise without informing him, in writing of the grounds on which they intend to take action and giving him what, in their view is a reasonable opportunity for stating his case in writing and before coming to a final decision, shall duly consider his statement and if he so desires give him a personal hearing or conduct an enquiry;

(ii)

The Management shall not, except with the previous permission of the Inspector terminate the services of the said teacher for incompetence, if he has put in five years of efficient service after being confirmed in his appointment; and

(iii)

It shall be lawful for the management at any time if satisfied on medical evidence that the said teacher is unfit, and is likely for a considerable period to continue unfit by reason of ill-health, for the discharge of his duties as such teacher to terminate his services on paying him as leave allowance after the date of his last appearance in the school, for the regular discharge of his duties as a teacher subject to a maximum of one month's full salary.

(2)

That the said teacher when he becomes a permanent member of the staff of the said school shall be entitled to have his services terminated either by giving to the management three months' notice thereof in writing or by paying that authority three months' salary in lieu of such notice.

(3)

That the said teacher, shall not during the period of his agreement when he has not been given notice of termination of his services by the management or has not given notice to the management for such termination of his services apply for an Appointment under any other authority except through the management and the penalty for any breach of this may at the discretion of the management be dismissal from service. The management shall not refuse to forward such application but may decline to relive him when the need arises unless he gives due notice or pays an amount equal to the salary for three months which he is drawing at that time.

(4)

That in respect of the teachers appointed temporarily or to act on probation, the school authority shall have power to terminate the services of any such teacher.

(i)

Without notice for any or all of the following reasons: -

Wilful neglect of duty, serious misconduct, gross insubordination mental unfitness, suspension or cancellation of teachers' certificate.

(ii)

With notice of two months or two months' salary in lieu thereof for the following reasons: -

Incompetence, retrenchment, physical unfitness or any other good cause.

(8)

That the said teacher shall be paid for such time as he shall be in the service of the said monthly salary in the scale of Rs..... starting on an initial salary of Rs..... with effect from (date) and the following additional allowances (here specify the allowances).

(9)

That in the event of the temporary absence of the teacher from duty by reason of sickness or leave or otherwise, he shall be paid such salary only as shall be determined by rules for the time being in force in the said school:

Provided always that the said teacher shall get the full salary or a proportionately reduced amount per month during the vacation according as he has worked for the full period subject to the instructions given by the Inspectors.

(10)

That in the event of either party to this agreement failing to observe the terms thereof, the aggrieved party shall have a right to appeal and the orders of the Inspector shall be final and binding on the parties.

In witness where of..... and..... have here set hands

Signed by the above named in the presence of

Signed by the above named in the presence of

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